

		<u>Sanctions.</u> Sanctions are GRANTED in the amount of \$1,850 in favor of plaintiff and against defendant, payable within 30 days of notice. (See Code Civ. Proc., § 1987.2, subd. (a).) Most of the subpoenas were egregiously overbroad on their face and oppressive as issued, and defendant has largely opposed this motion without substantial justification. (See <i>Obregon v. Superior Court</i> (1998) 67 Cal.App.4th 424, 431.) Plaintiff shall give notice.
7.	Boehner vs. Mercy House Living Centers 26-01543108	Motion - Other (Order to allow substituted service of summons and complaint) MOOT based on order granting substituted service March 26, 2026, ROA 65. In addition, Plaintiff filed a FAC on July 13, 2026, ROA 148.
8.	Smits vs. Mother Nature Trust 25-01482681	1. Motion for Leave to Amend 2. Case Management Conference Plaintiff Andrew Smits' Motion for Leave to File a Second Amended Complaint is GRANTED. (Code Civ. Proc. §473, subd. (a)(1); <i>Atkinson v. Elk Corp</i> (2003) 109 Cal.App.4th 739, 761 [policy of great liberality in permitting amendments]; <i>Howard v. County of San Diego</i> (2010) 184 Cal.App.4th 1422, 1428 [policy favoring amendment so strong it is rare case in which denial of leave to amend can be justified].) Leave to amend is warranted as the proposed amended pleading states an alternative theory of liability. (See <i>Morgan v. Super. Ct.</i> (1959) 172 Cal.App.2d 527, 530 ["If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend; and, where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion"]; <i>Kittredge Sports Co. v. Super. Ct.</i> (1989) 213 Cal.App.3d 1045, 1047 ["judicial policy favors resolution of all disputed matters in the same lawsuit"].) In opposition, Defendants challenges the legal sufficiency of the proposed amended complaint, arguing that Plaintiff's claims are barred by res judicata and the statute of limitations. The court is not going to entertain assertions regarding the legal sufficiency of Plaintiff's allegations in assessing a motion for leave to amend. Defendant can raise its challenges to the sufficiency of Plaintiff's claims in an appropriate proceeding. (See <i>Atkinson v. Elk Corp.</i> (2003)